



Clyde Navigation Order Confirmation Act 1964

CHAPTER xlii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

CLYDE NAVIGATION

1. Short title and citation of Acts.
2. Incorporation of the Harbours Clauses Act 1847.
3. Interpretation.
4. Compulsory purchase of land.
5. Amendment of rates on vessels and goods.
6. Rates on hover vehicles and hydrofoil vessels.
7. Power to compound for rates on hover vehicles, hydrofoil vessels and seaplanes.
8. Certain enactments not to apply to hover vehicles, hydrofoil vessels and seaplanes.
9. Power to undertake stevedoring and master portorage of cargo.
10. Limitation of Trustees' liability for safety of goods.
11. Byelaws relating to certain dangerous goods.
12. Notice before entry of dangerous goods.
13. Extension of powers of harbourmaster.
14. As to Erskine Ferry and Renfrew Ferry.
15. Abatement of work abandoned or decayed.

*Clyde Navigation
Order Confirmation Act 1964*

Section

16. Power to provide parking places and to make charges.
17. Power to undertake towage service.
18. Power to hire out plant.
19. Accounts of the Trustees.
20. Power to invest in securities of bodies corporate.
21. Borrowing and investment of pension fund and lump sum fund.
22. Crown rights.
23. For protection of corporation of the city of Glasgow.
24. Amendments to Clyde Navigation Acts 1858 to 1963.
25. Repeals.
26. Amendment of the Superannuation Fund Rules.
27. As to Harbours Act 1964.
28. Costs of Order.

SCHEDULES—

Schedule 1—Tonnage rates on vessels.

Schedule 2—Rates on goods, animals and vehicles.

Schedule 3—Enactments which do not apply to hover vehicles, hydrofoil vessels or seaplanes.

Schedule 4—Amendments—

Part I—Amendments coming into force on the date when the Order is confirmed by Parliament.

Part II—Amendments coming into force on 1st January, 1965.

Schedule 5—Repeals.

Schedule 6—Amendment of the Superannuation Fund Rules.

ELIZABETH II



1964 CHAPTER xlii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the Clyde Navigation.

[23rd December 1964]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said Order should 1936 c. 52. be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Clyde Navigation Order Confirmation Act 1964. Short title.

SCHEDULE

CLYDE NAVIGATION

Provisional Order to confer further powers on the Trustees of the Clyde Navigation; and for other purposes.

1858 c. cxlix.

Whereas the Trustees of the Clyde Navigation (hereinafter called "the Trustees") were incorporated by the Clyde Navigation Consolidation Act 1858, and powers have been conferred upon them by the Clyde Navigation Acts 1858 to 1963:

1929 c. xx.

1950 c. xxx.

1957 c. xxiii.

1960 c. ii.

1963 c. i.

And whereas it is expedient that the rates on vessels and goods authorised by the Clyde Navigation Act 1929, as amended by the Clyde Navigation Order Confirmation Act 1950, the Clyde Navigation Order Confirmation Act 1957, and the Clyde Navigation Order Confirmation Act 1960, and authorised by the Clyde Navigation Order Confirmation Act 1963, should be revised, that the Trustees should be authorised to demand rates on hover vehicles and hydrofoil vessels and that the powers of the Trustees to demand and recover rates should be amended as provided in this Order:

And whereas it is expedient that the Trustees should be authorised to undertake stevedoring and master portorage of cargo:

And whereas it is expedient that the further powers mentioned in this Order should be conferred on the Trustees:

1936 c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title and
citation of Acts.

1.—(1) This Order may be cited as the Clyde Navigation Order 1964.
(2) The Clyde Navigation Acts 1858 to 1963, and this Order may be cited together as the Clyde Navigation Acts 1858 to 1964.

Incorporation
of the Harbours
Clauses Act
1847.
1847 c. 72.

2.—(1) Sections 28, 33 and 84 to 89 of the Harbours Clauses Act 1847 (so far as they are applicable for the purpose of and are not inconsistent with or varied by this Order) are hereby incorporated with and form part of this Order:

1953 c. 36.

Provided that section 28 as so incorporated shall be read and have effect as amended by subsection (2) of section 31 of the Post Office Act 1953.

(2) In construing the sections so incorporated the expression "the special Act" shall mean this Order, the expression "the undertakers" shall mean the Trustees and the expression "the harbour, dock or pier" shall mean the river and the harbour.

3.—(1) In this Order, unless the subject or context otherwise requires, Interpretation the words and expressions to which meanings are assigned by section 6 (Interpretation) of the Act of 1929 shall have the same respective meanings, and—

“ the Act of 1858 ” means the Clyde Navigation Consolidation 1858 c. cxlix. Act 1858;

“ the Act of 1887 ” means the Clyde Navigation Act 1887; 1887 c. viii.

“ the Act of 1929 ” means the Clyde Navigation Act 1929; 1929 c. xx.

“ enactment ” means any Act, whether public, general or local, and any order made thereunder and any provisions in any Act or in any such order;

“ financial year ” has the meaning assigned to that expression by section 3 (Interpretation) of the Order of 1908;

“ the Harbours Clauses Act 1847,” means the Harbours Docks and Piers Clauses Act 1847; 1847 c. 27.

“ the harbourmaster ” means the harbourmaster appointed by the Trustees and includes his deputies and assistants;

“ hover vehicle ” means any vehicle, however propelled, designed to be supported on a cushion of air;

“ hydrofoil vessel ” means any vessel, however propelled, designed to be supported on foils;

“ lump sum fund ” means the lump sum fund authorised to be established and maintained by the Trustees under the Order of 1955 and all moneys belonging thereto;

“ the Minister ” means the Minister of Transport;

“ operational land ” has the meaning assigned to that expression by section 113 of the Town and Country Planning (Scotland) Act 1947; 1947 c. 53.

“ the Order of 1908 ” means the Clyde Navigation (Superannuation) Order, 1908;

“ the Order of 1955 ” means the Clyde Navigation (Superannuation) Order, 1955;

“ the Order of 1950”, “ the Order of 1957”, “ the Order of 1960 ” and “ the Order of 1963 ” mean the Clyde Navigation Orders of those respective years;

“ pension fund ” means the pension fund authorised to be established and maintained by the Trustees under the Order of 1908 and all moneys belonging thereto;

“ pleasure craft ” means any vessel not used solely as a tug, dredger, pontoon or craft engaged in maintaining waterways or docks or wholly or mainly for the carriage of goods and includes any vessel of not more than 100 tons gross used wholly or mainly for the carriage of passengers for reward;

“ seaplane ” includes a flying boat or any other aircraft designed to manoeuvre on the water but does not include a hover vehicle or hydrofoil vessel;

“ undertaking ” means the undertaking of the Trustees for the time being authorised,

1847 c. 27.

(2) In the Clyde Navigation Acts, 1858 to 1963, and in the Harbours Clauses Act 1847, as incorporated therein and in this Order "vessel" means every description of vessel, however propelled or moved, and includes any thing (whether in, on, under, or supported by a cushion of air over, water) constructed or used to carry persons or goods by water and, except for the purpose of levying rates, includes a seaplane on or in the water.

(3) References in this Order to any enactment shall be construed as references to that enactment as amended by any other enactment including this Order.

Compulsory purchase of land.

1947 c. 42.

4.—(1) The Minister may authorise the Trustees to purchase compulsorily any land which they require for the purposes of the undertaking and the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947, shall apply as if the Trustees were a local authority within the meaning of that Act and as if this Order had been in force immediately before the commencement of that Act:

Provided that the Minister shall not authorise the Trustees to purchase compulsorily land which they have power to acquire by agreement or any operational land of any electricity or gas undertakers.

(2) The power of purchasing land compulsorily in this section includes power to acquire a servitude or other right over land by the creation of a new right:

Provided that this subsection shall not apply to a servitude or other right over any land which would for the purposes of the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947, form part of a common or open space.

Amendment of rates on vessels and goods.

5. The Act of 1929 is hereby amended by the substitution of Schedules 1 and 2 to this Order for the First and Second Schedules to the Act of 1929 and the Clyde Navigation Acts 1858 to 1963, shall be read and construed accordingly.

Rates on hover vehicles and hydrofoil vessels.

6. The Trustees may demand and take on or in respect of hover vehicles and hydrofoil vessels entering or using the port such rates as the Trustees may determine and as shall be approved by the Minister.

Power to compound for rates on hover vehicles, hydrofoil vessels and seaplanes.

7. The Trustees may from time to time agree with the owner of a hover vehicle, hydrofoil vessel or seaplane liable to pay rates to the Trustees for entering or using the port for the payment of a fixed sum payable in advance, as composition by the year or shorter period for the rates payable during the period of composition.

Certain enactments not to apply to hover vehicles, hydrofoil vessels and seaplanes.

8. The enactments referred to in the first, second and third columns of Schedule 3 to this Order shall not apply to hover vehicles, hydrofoil vessels and seaplanes.

Power to undertake stevedoring and master portage of cargo.

9. Notwithstanding any provision of the Clyde Navigation Acts 1858 to 1963, the Trustees may (in addition to the stevedoring and master portage of grain feeding stuffs and other similar products pursuant to the authority contained in section 34 (Services for bulk grain at granary berths Meadowside Quay) and section 35 (Services

for grain flour &c. in bags at granary berths Meadowside Quay) of the Act of 1929) undertake directly or by contract stevedoring and master portorage of cargo in any part of the undertaking, including the loading and discharging, weighing, measuring, receiving, storing, watching and delivery of all or any portion of such cargo of any vessel and any other operations, services or duties connected therewith and generally undertaken or performed by stevedores and master porters respectively and the Trustees may make such reasonable charges as they may think fit for the services so rendered and for the use of any of their plant and appliances required in connection therewith:

Provided always that the Trustees shall continue to license other stevedores and master porters pursuant to the authority contained in section 9 (Licensing of weighers and others) of the Act of 1887 and section 32 (Licensing and fixing duties and charges of master porters) of the Act of 1929 and shall exercise the powers authorised under this section subject to the same terms and conditions of licence as apply to such other stevedores and master porters.

10. The Trustees shall not be responsible for the safety of any goods deposited in their transit sheds, yards, buildings, quays or other premises not specifically set apart by the Trustees for the purpose of warehousing.

Limitation of Trustees' liability for safety of goods.

11.—(1) The Trustees may make byelaws as to the loading and discharging by vessels within the river or harbour of dangerous goods (which expression in this section and in section 12 (Notice before entry of dangerous goods) does not include dangerous goods to which byelaws made by the Trustees under the Explosives Act 1875, or the Petroleum (Consolidation) Act 1928, for the time being apply) and generally as to the precautions to be observed with respect to vessels carrying dangerous goods while in the river or harbour and such byelaws may in particular provide—

Byelaws relating to certain dangerous goods.

1875 c. 17.
1928 c. 32.

- (a) for regulating the places at which vessels are to load or discharge dangerous goods and the time and mode of, and the precautions to be taken on, such loading and discharging;
- (b) for regulating the places at which vessels carrying dangerous goods are to be moored;
- (c) for the due enforcement of the byelaws.

(2) Byelaws made under subsection (1) of this section shall not come into force until confirmed by the Minister.

(3) Where a person is charged with an offence against a byelaw in force under this section it shall be a defence for that person to prove that the offence was not caused or facilitated by any act or neglect on his part, or on the part of any person engaged or employed by him, and, if that person is charged as the owner or the master of a vessel, that, in addition, all reasonable steps were taken by the master to prevent the commission of the offence.

(4) Byelaws made under subsection (1) of this section may contain provisions for the imposing on persons offending against any of the byelaws of fines not exceeding, on summary conviction, one hundred pounds and, on conviction on indictment, one thousand pounds.

Notice before
entry of
dangerous
goods.

12.—(1) Except in case of emergency, the owner or master of a vessel carrying any dangerous goods shall, not less than twenty-four hours before that vessel enters the river or harbour, give notice to the harbourmaster of the nature and quantity of dangerous goods carried in the vessel and, if such notice is not given, the owner or master of the vessel shall be guilty of an offence and shall be liable to a fine not exceeding one hundred pounds.

(2) Where the owner or master of a vessel is charged with an offence under subsection (1) of this section it shall be a defence to prove that he did not know and could not with reasonable diligence have ascertained the nature of the goods in respect of which the proceedings are taken.

Extension of
powers of
harbourmaster.

1847 c. 27.

13. Section 52 of the Harbours Clauses Act 1847, as incorporated with the Act of 1858, in its application to the Trustees and to the harbourmaster shall, notwithstanding the provisions of section 33 of the Harbours Clauses Act 1847, as also so incorporated extend so as to empower the harbourmaster to impose terms and conditions upon which a pleasure craft, hover vehicle or hydrofoil vessel may enter the river.

As to Erskine
Ferry and
Renfrew Ferry.
1904 c. ccxlii.

14.—(1) Notwithstanding the provisions of section 49 (Confirming agreement with W. A. Baird) of the Clyde Navigation Act 1904 or the agreement referred to in that section the Trustees may, when a bridge proposed to be constructed and known as the Erskine Bridge has been constructed and opened for public traffic or on such earlier date as the operations in connection with the construction of the bridge render it impracticable to operate the ferry, discontinue and abandon Erskine Ferry and as from the date of such discontinuance and abandonment the Trustees shall by virtue of this Order be relieved from all or any obligations (statutory or otherwise) to maintain the said ferry.

1911 c. li.

(2) Notwithstanding the provisions of section 22 (Purchase of Renfrew Ferry undertaking Confirming agreement tolls &c.) of the Clyde Navigation Act 1911 or of the agreement referred to in that section the Trustees may subject to the provisions of subsection (3) of this section—

- (a) limit the service at Renfrew Ferry to such days and during such hours as they may determine; or
- (b) discontinue and abandon Renfrew Ferry and as from the date of such discontinuance and abandonment the Trustees shall by virtue of this Order be relieved from all or any obligations (statutory or otherwise) to maintain the said ferry.

(3) Before exercising any of the powers conferred upon them by subsection (2) of this section, the Trustees shall put public notice of the proposals by advertisement in a newspaper circulating in the city of Glasgow and in the Edinburgh Gazette as follows:—

- (a) in the case of proposals under paragraph (a) of the said subsection, the notice shall be given not less than one month before the proposals are to take effect;
- (b) in the case of proposals under paragraph (b) of the said subsection the notice shall be given not less than three months before the proposals are to take effect.

15.—(1) If any slipway constructed for the purposes of Erskine Ferry or Renfrew Ferry and situate wholly or partially on, under or over the shore or bed of the river below the level of mean high-water springs is abandoned or suffered to fall into decay the Minister may, by notice in writing either require the Trustees at their own expense to repair and restore such part of such slipway as is situate below the level of mean high-water springs, or any portion thereof, or require them to abate or remove the same and restore the site thereof to its former condition, to such an extent and within such limits as the Minister may think proper.

Abatement of work abandoned or decayed.

(2) Where any part of any such slipway which has been abandoned or suffered to fall into decay is situate above the level of mean high-water springs, and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore, the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If, during the period of thirty days from the date when the notice is served upon the Trustees they have failed to comply with such notice the Minister may execute the works required to be done by the notice at the expense of the Trustees and the amount of such expense shall be a debt due from the Trustees to the Crown, and shall be recoverable accordingly.

16. The Trustees may, on any land for the time being belonging to or held by them, provide and maintain parking places at which vehicles may be left, and may make reasonable charges in respect of any vehicle left at any such parking place or elsewhere within the undertaking.

Power to provide parking places and to make charges.

17. The Trustees may from time to time purchase, contract for or hire and may maintain and use tugs for the use and accommodation of vessels and may sell or dispose of any such tugs.

Power to undertake towage service.

18. The Trustees may let upon hire (with or without the services of their employees) to such persons, at such places and on such terms as they think fit any vessel, plant, equipment or other property belonging to them.

Power to hire out plant.

19.—(1) The Trustees shall keep proper accounts, and proper records in relation to those accounts, and shall prepare proper statements of account in respect of each financial year of the Trustees; and the accounts of the Trustees for each such year shall be audited by an auditor (not being one of the Trustees or holding office under them) appointed by the Sheriff of Lanarkshire on application by the Trustees.

Accounts of the Trustees.

(2) Subject as hereinafter provided a person shall not be qualified to be so appointed auditor unless he is a member of one or more of the following bodies, that is to say:—

- (a) the Institute of Chartered Accountants of Scotland;
- (b) the Institute of Chartered Accountants in England and Wales;
- (c) the Institute of Chartered Accountants in Ireland;

1948 c. 38.

- (d) the Association of Certified and Corporate Accountants;
- (e) any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section 161 of the Companies Act 1948, by the Board of Trade.

(3) Notwithstanding anything contained in subsection (2) of this section, a Scottish firm shall be qualified to be so appointed auditor if, but only if, all the partners thereof are qualified for such appointment.

(4) The report of the auditor on the accounts of the Trustees for each financial year shall be read at the first ordinary meeting of the Trustees to be held on the first Tuesday in March following the year of account.

(5) The Trustees shall cause an abstract of the annual accounts as audited to be printed on or before the 31st March each year and shall send a copy of such abstract of accounts to the Minister and to the sheriff-clerks of Lanarkshire, Renfrewshire and Dunbartonshire; and further copies shall be made and kept available at the offices of the Trustees for inspection by the public without charge during reasonable hours and for supply on demand to any person on payment of such reasonable charge as the Trustees may determine.

(6) The Trustees shall pay to the auditor for auditing the accounts such sum per annum as they shall deem reasonable.

Power to invest
in securities of
bodies
corporate.

20.—(1) In order to provide or facilitate the provision of funds for—

- (a) the establishment, carrying on or extension by any body corporate of warehouses, factories or works at or near any of the docks, or other works of the Trustees;
- (b) the establishment or carrying on by any body corporate of an undertaking or business connected with or ancillary to the carrying on of the undertaking by the Trustees;
- (c) the establishment or carrying on by any body corporate or an undertaking or business concerned with the transport of handling of goods;
- (d) the carrying on by any body corporate of any other undertaking or business which appears to the Trustees to be advantageous or convenient for, or in connection with, their undertaking or to be for the benefit of the Trustees either directly or indirectly;

and, to the extent requisite therefor, the Trustees may subscribe for, purchase, take up and hold or dispose of any shares, stock, mortgages, debentures or debenture stock of such body corporate and may in respect of any such shares, stock, mortgages, debentures or debenture stock for the time being held by them exercise either by themselves or through some person nominated by them for the purpose all or any of the rights exercisable by an individual holder of such shares, stock, mortgages, debentures or debenture stock.

(2) The Trustees may apply for the purposes of this section any of their capital or funds for the time being available.

21.—(1) The pension fund and the lump sum fund may at the discretion of the Trustees be borrowed by them in accordance with the provisions of section 9 of the Order of 1908 and section 7 of the Order of 1955 respectively or may be invested by them in investments in which trustees are authorised to invest trust funds according to the law of Scotland for the time being.

Borrowing and investment of pension fund and lump sum fund.

(2) The Trustees shall carry and credit to the pension fund and the lump sum fund each year all dividends and interest arising out of the investment of such funds.

22. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained shall authorise the Trustees to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Crown rights.

23. Nothing contained in this Order—

(a) shall prejudice or affect the provisions of section 56 (Exemption from tolls of vessels etc. employed in connection with sewage works) of the Glasgow Corporation Sewage Order, 1935, and the exemption from rates conferred by that section shall, notwithstanding anything contained in this Order, continue in full force and effect ;

For protection of corporation of the city of Glasgow.

(b) shall be construed as authorising any development (within the meaning of the Town and Country Planning (Scotland) Acts 1947 to 1963) to be carried out within the City and Royal Burgh of Glasgow without the grant of planning permission by the Corporation of the City of Glasgow as a local planning authority where such permission is required under those Acts or under any regulations or orders made thereunder.

24.—(1) The enactments referred to in the first, second and third columns of Part I of Schedule 4 to this Order are hereby amended as specified in the fourth column of that schedule.

Amendments to Clyde Navigation Acts 1858 to 1963.

(2) The enactments referred to in the first, second and third columns of Part II of Schedule 4 to this Order shall on the 1st January, 1965, be amended as specified in the fourth column of that schedule.

25. The enactments referred to in the first, second and third columns of Schedule 5 to this Order are hereby repealed to the extent specified in the fourth column of that schedule.

Repeals.

26. The Superannuation Fund Rules set out in the schedule to the Order of 1908 are hereby amended as specified in the second column of Schedule 6 to this Order.

Amendment of the Superannuation Fund Rules.

27. This Order shall for the purposes of the Harbours Act 1964 be deemed to be an enactment passed before and in force at the passing of that Act.

As to Harbours Act 1964.

28. All costs, charges and expenses of and incident to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Trustees out of the revenues of the undertaking.

1964 c. 40.
Costs of Order.

SCHEDULES

SCHEDULE I

Section 5.

TONNAGE RATES ON VESSELS

On all vessels entering or using the port	TARIFF		
	A	B	C
	s. d.	s. d.	s. d.
SECTION I			
From or to any place within a line drawn from east to west across the channel at Pladda—			
per net register ton	0 9	0 10½	1 1½
increased by per ton of cargo loaded and/or discharged	1 1½	0 6	0 0
SECTION II			
From or to any place, except as provided for in Section 1, in the United Kingdom, Isle of Man, Channel Islands or Republic of Ireland—			
per net register ton	1 0	1 2	1 6
increased by per ton of cargo loaded and/or discharged	1 6	0 8	0 0
SECTION III			
From or to any place in Europe, including Iceland, and the Faroe Islands, from Gibraltar to the North Cape, inclusive—			
per net register ton	2 6	2 11	3 9
increased by per ton of cargo loaded and/or discharged	3 9	1 8	0 0
SECTION IV			
From or to any other place—			
per net register ton	3 0	3 6	4 6
increased by per ton of cargo loaded and/or discharged	4 6	2 0	0 0
NOTE: Rates will be charged at the tariff which works out cheapest for a particular vessel. Under certain circumstances differential rates • will apply in accordance with Condition 4.			

RENT ON VESSELS

A vessel remaining longer than thirty-one days without interruption within the port will be charged sevenpence halfpenny per net register ton for every week or part thereof.

CONDITIONS

1. APPLICATION OF RATES ON VESSELS

(a) Rates will be chargeable on a vessel's net registered tonnage, including any space occupied by deck cargo as defined by the Merchant Shipping Acts.

(b) For the purpose of assessing rates, the net registered tonnage of tugs using the port shall in no case be deemed to be less than 20 per cent. of the gross registered tonnage thereof:

SCH. 1
—cont.

Provided that the owner of any such tug regularly using the port may contract with the Trustees for payment of the sum of sixty-eight pounds in respect of each such tug for each period of twelve months commencing on 1st January, and such sum shall be payable in equal monthly instalments and be in full of all rates chargeable in respect of such tug using any part of the port, but in the event of the sale and removal from the port or loss or breaking up of any such tug during such period of twelve months no further instalments of rates shall be payable in respect thereof.

(c) The tonnage of unregistered vessels for the purpose of assessing rates will be ascertained as follows:—

Deadweight carrying capacity of vessel	Tonnage
Not exceeding 50 tons 	20 tons.
Exceeding 50 tons but not exceeding 75 tons 	30 tons.
Exceeding 75 tons 	10 tons (in addition to the above- mentioned 30 tons) for each 25 tons of deadweight carrying capacity in excess of 75 tons. Any deadweight capacity in excess of a complete multiple of 25 tons to be reckoned as 25 tons.

2. PRODUCTION OF CERTIFICATE OF REGISTRY, ETC.—The Master of every registered vessel shall on demand produce the certificate of registry of such vessel together with a certificate of any deck cargo. Should any such Master refuse or neglect to make such production on demand he shall be liable to a fine not exceeding twenty pounds.

3. ARRIVAL AND DEPARTURE TREATED AS ONE VOYAGE.—The arrival and departure of a vessel will be treated as one voyage and all vessels will be liable for the rates applicable to the most distant port from which they arrive or to which they depart.

4. DIFFERENTIAL RATES.

(a) Vessels which call at the port a second time during the course of a single voyage will be given a reduction of $33\frac{1}{3}$ per cent. on the second call.

(b) Vessels trading within the port will be charged one shilling per net register ton on each round trip.

SCH. 1
—cont.

(c) New vessels launched or coming into the port for the first time from any shipbuilding yard, graving dock or other works eastwards of the Castle of Newark, or arriving in the port to be fitted out, will be charged one shilling and threepence per net register ton.

(d) Vessels which call at the port in order to go into dry dock or to undergo repairs within the port without loading or discharging cargo will be charged sevenpence halfpenny per net register ton.

(e) Vessels in ballast which come into the port to be broken up will be charged sevenpence halfpenny per net register ton.

(f) Vessels which call at the port only to take in bunkers and/or ballast for their own use and which do not remain longer than forty-eight hours within the port will be charged sevenpence halfpenny per net register ton.

(g) Vessels loading and/or discharging cargo consisting exclusively of petroleum (oil or spirit) in bulk at Old Kilpatrick and Dunglass Oil Jetties will be given a reduction of 80 per cent.

(h) Vessels proceeding to Paisley to discharge and/or load cargo from ports or places outwith the port will be given a reduction of $66\frac{2}{3}$ per cent.

(i) If after leaving the port, a vessel which has incurred rates is immediately obliged to return and re-enter the port by reason of stress of weather or other sufficient cause, further rates will not be chargeable thereon.

5. In determining the total cargo loaded and/or discharged the following weights shall be taken as equivalents:—

Passengers	...	...	...	...	...	3 tons per head.
Cattle and horses	...	...	...	...	...	$2\frac{1}{2}$ tons per head.
Sheep and pigs	...	...	...	...	...	1 ton per head.

6. In calculating rates fractions of a week or net register ton will be reckoned as a week or net register ton.

SCHEDULE 2

RATES ON GOODS, ANIMALS AND VEHICLES

Section 5.

Classification	Rate per ton			
	Foreign		Coastwise	
	s.	d.	s.	d.
Live animals—				
Horses, mules, ponies and asses ... each	3	9	2	10
Bulls, cows, oxen, queys and stirks each	2	10	1	10
Calves under one year old ... each	0	11	0	8
Swine and goats, sheep and lambs ... each	0	6	0	4
Dogs and other small animals ... each	0	6	0	4
Birds ... each	0	6	0	4
Meat and edible meat offals...	11	3	8	5
Fish, crustaceans and molluscs ...	11	3	8	5
Dairy produce, birds eggs and honey ...	11	3	8	5
Products of animal origin not elsewhere specified or included—				
Guts, intestinal skins, spetches and hide cuttings ...	7	6	5	8
Sinews, dried ...	5	8	4	3
Feathers ...	11	3	8	5
Bones, bone dust and meal ...	5	0	3	9
Horn or hoof meal and waste ...	5	0	3	9
Oyster shells, crushed ...	5	0	3	9
Blood, liquid and dried ...	5	0	3	9
Live trees and other plants, bulbs, roots and the like, cut flowers and ornamental foliage ...	11	3	8	5
Edible vegetables and certain roots and tubers—				
Vegetables (root and green) ...	6	3	4	8
Potatoes, preserved ...	11	3	8	5
Peas, beans, including dholl, dhall and gram for animal or poultry feeding ...	5	11	4	4
Lentils, butter beans and peas ...	6	3	4	8
Peas and lentils (split) ...	7	6	5	8
Edible fruit and nuts, peel of melons or citrus fruit ...	11	3	8	5
Coffee, tea, mate and spices ...	11	3	8	5
Cereals—				
Wheat, rye, barley, Indian corn, rice, etc.	5	0	3	9
Canary and millet seed ...	7	6	5	8
Products of the milling industry, malt and starches; gluten; inulin—				
Cereal flours ...	6	3	4	8
Malt ...	8	9	6	7
Starches; potato and cereal grain ...	7	6	5	8

SCH. 2
—cont.

Classification	Rate per ton			
	Foreign		Coastwise	
	s.	d.	s.	d.
Oil seeds and oleaginous fruits; miscellaneous grains, seeds and fruits, industrial and medical plants; straw and fodder—				
Soya Beans	5	0	3	9
Oil Seeds and oleaginous fruits not elsewhere specified	6	3	4	8
Seeds for sowing	11	3	8	5
Liquorice and nux vomica	11	3	8	5
Straw and fodder	5	0	3	9
Raw vegetable materials of a kind suitable for use in dyeing or in tanning; lacs, gums, resins and other vegetable saps and extracts—				
Dyeing and tanning, raw vegetable materials	7	6	5	8
Gums, resins and other vegetable extracts	8	9	6	7
Vegetable plaiting and carving materials; vegetable products not elsewhere specified or included—				
Bamboo poles, canes and willows ...	11	3	8	5
Kapok	11	3	8	5
Grasses (all other kinds)	5	0	3	9
Animal and vegetable fats and oils and their cleavage products—				
Crude coconut, ground nut, palm kernel and soyabean oils	7	6	5	8
Animal and vegetable fats and oils not elsewhere specified	11	3	8	5
Prepared edible fats	11	3	8	5
Animal and vegetable waxes	11	3	8	5
Preparations of meat, of fish, of crustaceans or molluscs	11	3	8	5
Sugars and sugar confectionery—				
Sugars, syrups, glucose and treacle ...	8	9	6	7
Molasses and treacle for cattle feeding ...	5	11	4	4
Confectionery	11	3	8	5
Cocoa and cocoa preparations	11	3	8	5
Preparations of cereals, flour or starch; pastry-cooks' products	11	3	8	5
Preparations of vegetables, fruit or other parts of plants	11	3	8	5
Miscellaneous edible preparations	11	3	8	5
Beverages, spirits and vinegar—				
Mineral waters, ale, beer and cider	11	3	8	5
Wines	15	0	11	3
Alcohol, industrial	11	3	8	5
Spirits, brandy, gin, etc., bottled and in casks	15	0	11	3
Vinegar	11	3	8	5
Residues and waste from the food industries; prepared animal fodder	5	11	4	4

Classification	Rate per ton		SCH. 2 —cont.
	Foreign	Coastwise	
	s. d.	s. d.	
Tobacco—			
Tobacco stems	6 3	4 8	
Tobacco, cigars and cigarettes	15 0	11 3	
Salt; sulphur; earths and stone; plastering materials, lime and cement—			
Salt	1 10	1 5	
Salt, table	5 0	3 9	
Pyrites cinders	1 6	1 1	
Sulphur, crude	5 0	3 9	
Graphite (plumbago)	8 9	6 7	
Sands of all kinds	1 10	1 5	
Natural clays, whether or not calcined, and kyanite	1 10	1 5	
Chalk and whitening	1 10	1 5	
Earth colours, whether or not calcined ...	7 6	5 8	
Phosphate rock	1 10	1 5	
Barium rock, crude (barytes)	1 10	1 5	
Infusorial and siliceous earths	5 0	3 9	
Pumice stone, emery and other natural abrasives	5 0	3 9	
Marble (roughly split)	11 3	8 5	
Stones; freestone, whin; granite rough, gravel; road metal, plain or tarred ...	1 10	1 5	
Marble chips and dust	5 0	3 9	
Dolomite	1 10	1 5	
Magnesite, whether or not calcined ...	6 3	4 8	
Magnesite and gypsum, crude	2 6	1 10	
Limestone, limestone, ground	1 6	1 1	
Lime, burnt, or limeshell	1 10	1 5	
Cement, shell or clinker	1 10	1 5	
Portland and similar hydraulic cements, whether or not coloured	5 0	3 9	
Asbestos, crude	7 6	5 8	
Natural steatite; talc	6 3	4 8	
Felspar and fluorspar (crude and ground)	3 9	2 10	
Vermiculite ore	2 6	1 10	
Metallic ores, slag and ash—			
Manganese ore	2 6	1 10	
Bauxite ore, bog ore, iron ore and burnt ore	1 6	1 1	
Chrome ore and concentrates	2 10	1 10	
Slag	1 6	1 1	
Metallic ashes	6 3	4 8	
Kelp	7 6	5 8	
Mineral fuels, mineral oils and products of their distillation; bituminous substances; mineral waxes—			
Coal, bunkers	1 4	1 0	
Coal, inwards	1 6	1 0	

SCH. 2
—cont.

Classification					Rate per ton			
					Foreign		Coastwise	
					s.	d.	s.	d.
Coal, outwards	...	...	...	...	1	4	1	0
Patent fuel	...	...	...	...	2	6	1	10
Coal briquettes	...	...	...	...	1	10	1	5
Peats, turf, moss and peat litter	...	...	...	...	1	6	1	0
Coke	...	...	...	...	1	4	1	0
Tar, coal and gas	...	...	...	...	5	0	3	9
Crude naphthaline (creosote salts)	...	...	...	...	6	3	4	8
Creosote	...	...	...	...	6	3	4	8
Pitch, coal tar and blast furnace	...	...	...	...	2	6	1	10
Petroleum in bulk—								
Heavy oils (including diesel oil, gas or fuel oil for bunkers)								
			In	...	8	0	6	0
			Out	...	3	0	2	0
Not otherwise rated			...	...	12	0	9	0
Vaseline	...	...	...	...	11	3	8	5
Paraffin, scale and wax	...	...	...	...	11	3	8	5
Paraffin and petroleum coke	...	...	...	...	2	6	1	10
Asphalt, crude	...	...	...	...	2	6	1	10
Asphalt	...	...	...	...	5	0	3	9
Pitch, natural Trinidad	...	...	...	...	3	9	2	10
Bitumen and petroleum pitch	...	...	...	...	5	0	3	9
Inorganic chemicals; organic and inorganic compounds of precious metals, of rare earth metals, of radioactive elements and of isotopes—								
Chemical elements—								
Carbon, black	...	...	...	...	11	3	8	5
Gases in cylinders	...	...	...	...	11	3	8	5
Arsenic	...	...	...	...	8	9	6	7
Sodium	...	...	...	...	11	3	8	5
Inorganic acids	...	...	...	...	11	3	8	5
Caustic soda and potash	...	...	...	...	7	6	5	8
Metallic oxides	...	...	...	...	11	3	8	5
Chlorides, chlorites and chlorates	...	...	...	...	6	3	4	8
Salt cake	...	...	...	...	2	6	1	10
Sulphides, sulphites and sulphates	...	...	...	...	6	3	4	8
Nitrites and nitrates	...	...	...	...	11	3	8	5
Phosphites and phosphates	...	...	...	...	7	6	5	8
Carbonates	...	...	...	...	6	3	4	8
Cyanides	...	...	...	...	11	3	8	5
Borates	...	...	...	...	11	3	8	5
Chromates and bichromates	...	...	...	...	11	3	8	5
Carbides	...	...	...	...	11	3	8	5
Inorganic chemicals not elsewhere specified	...	...	...	...	11	3	8	5
Organic chemicals	...	...	...	...	11	3	8	5
Pharmaceutical products	...	...	...	...	11	3	8	5

*Clyde Navigation
Order Confirmation Act 1964*

CH. xlii

17

Classification	Rate per ton		SCH. 2 —cont.
	Foreign	Coastwise	
	s. d.	s. d.	
Fertilisers—			
Chemical, superphosphates, potash, etc. ...	5 0	3 9	
Slag, ground	2 6	1 10	
Tanning and dyeing extracts; tannins and their derivatives, dyes, colours, paints and varnish, putty, fillers and stoppings; inks	11 3	8 5	
Soap, organic surface-active agents, washing preparations, lubricating preparations, artificial waxes, prepared waxes, polishing and scouring preparations, candles and similar articles, modelling pastes and dental waxes	11 3	8 5	
Albuminoidal substances, glues	11 3	8 5	
Explosives; pyrotechnic products; matches, pyrophoric alloys; certain combustible preparations	11 3	8 5	
Miscellaneous chemical products—			
Charcoal, bone	6 3	4 8	
Spent oxide	2 6	1 10	
Turpentine and rosin size	11 3	8 5	
Wood tar	6 3	4 8	
Cattle or sheep dip and all other disinfectants	11 3	8 5	
Artificial resins and plastic materials, cellulose esters and ethers; articles thereof	11 3	8 5	
Rubber, synthetic rubbers, factice, and articles thereof	11 3	8 5	
Rubber scrap	3 9	2 10	
Raw hides, skins (other than fur skins) and leather	11 3	8 5	
Leather cuttings	5 0	3 9	
Wood and articles of wood; wood charcoal—			
Firewood, chips and sawdust	1 10	1 5	
Charcoal	7 6	5 8	
Hardwood (broad leaved), rough, hewn or sawn	6 3	4 8	
Softwood (coniferous), rough, hewn or sawn	5 0	3 9	
Spoolwood, strips or squares	5 0	3 9	
Dunnage	3 9	2 10	
Sleepers, whether or not creosoted	5 0	3 9	
Matchwood, manufactured and blocks	7 6	5 8	
Fencing	7 6	5 8	
Parquetry	11 3	8 5	

SCH. 2
—cont.

Classification	Rate per ton			
	Foreign		Coastwise	
	s.	d.	s.	d.
Hardwood (broad leaved), planed, tongued, grooved	7	6	5	8
Softwood (coniferous), planed, tongued, grooved	6	3	4	8
Box shooks	6	3	4	8
Plywood and veneer	11	3	8	5
Empty boxes, cases, crates or casks ...	11	3	8	5
Puncheon packs (knocked down barrels) ...	8	9	6	7
All other articles of wood	11	3	8	5
Cork and articles of cork	11	3	8	5
Manufactures of straw, of esparto and of other plaiting materials; basketware and wickerwork	11	3	8	5
Paper-making material—				
Wood pulp and esparto grass	3	9	2	10
Rags (cotton, linen and hemp) and other textile wastes (such as old ropes) ...	5	0	3	9
Waste paper and waste paperboard ...	5	0	3	9
Paper and paperboard; articles of paper pulp, of paper or of paperboard	11	3	8	5
Printed books, newspapers, pictures and other products of the printing industry; manuscripts, typescripts and plans	11	3	8	5
Silk and silk waste	11	3	8	5
Wool and other animal hair	11	3	8	5
Flax and ramie—				
Flax	11	3	8	5
Flax tow and waste	8	9	6	7
Cotton	11	3	8	5
Other vegetable textile materials, yarn and woven fabric of paper yarn—				
Hemp tow and waste	8	9	6	7
Hemp	11	3	8	5
Raw jute	10	0	7	6
Fibre of every description	11	3	8	5
Yarn of every description	11	3	8	5
Jute manufactures	11	3	8	5
Carpets, mats, matting and tapestries; pile and chenille fabrics, narrow fabrics; trimmings; tulle and other net fabrics, lace, embroidery ...	11	3	8	5

*Clyde Navigation
Order Confirmation Act 1964*

CH. xlii

19

Classification	Rate per ton		SCH. 2 —cont.
	Foreign	Coastwise	
	s. d.	s. d.	
Wadding and felt, twine, cordage, ropes and cables; special fabrics; impregnated and coated fabrics; textile articles of a kind suitable for industrial use	11 3	8 5	
Other made-up textile articles	11 3	8 5	
Old clothing and other textile articles	11 3	8 5	
Footwear, gaiters and the like; parts of such articles	11 3	8 5	
Articles of stone, of plaster, of cement, of asbestos, of mica and of similar materials—			
Stones, causeway and kerb	1 10	1 5	
Stones, dressed or monumental (including marble)	11 3	8 5	
Slates, roofing	6 3	4 8	
Grindstones	11 3	8 5	
Slag wool, expanded clays and exfoliated vermiculite	6 3	4 8	
Wallboards, plaster	7 6	5 8	
Tiles, terrazzo	6 3	4 8	
Articles of concrete	3 9	2 10	
Articles of asbestos	6 3	4 8	
Ceramic products—			
Magnesite bricks	3 9	2 10	
Silica and terra cotta bricks	2 6	1 10	
Other refractory goods	6 3	4 8	
Common, composition and fireclay bricks	1 10	1 5	
Roofing tiles, chimney pots and liners ...	6 3	4 8	
Piping, conduits and guttering	3 9	2 10	
Drain tiles	1 10	1 5	
Stoneware, bottles and jars	7 6	5 8	
Sinks, w.c. pans, baths and like sanitary fittings	11 3	8 5	
Tableware and other articles for domestic use	11 3	8 5	
Other ceramic products	11 3	8 5	
Glass and glassware—			
Glass, broken	1 10	1 5	
Glass and glassware	11 3	8 5	
Pearls, precious and semi-precious stones, precious metals, rolled precious metals and articles thereof; imitation jewellery—			
Bullion or specie per package	11 3	8 5	

SCH. 2
—cont.

Classification	Rate per ton			
	Foreign		Coastwise	
	s.	d.	s.	d.
Iron and steel and articles thereof—				
Pig iron	2	6	1	10
Ferro alloys	6	3	4	8
Scrap for re-melting	2	6	1	10
Scrap for re-rolling	5	0	3	9
Plate cuttings, not for re-melting	5	0	3	9
Grit and shot	6	3	4	8
Ingots	3	9	2	10
Billets, blooms, slabs, sheet bars and coils	3	9	2	10
Angles, bars, channels, girders, joists, plates, rods, sections and sheets ...	5	0	3	9
Rough forgings	5	0	3	9
Galvanised sheets	6	3	4	8
Tin and terne plates	11	3	8	5
Iron or steel wire, whether or not coated, but not insulated	7	6	5	8
Railway or tramway track construction material, unassembled	6	3	4	8
Cast iron pipes of all kinds	7	6	5	8
Tubes, plain or galvanised, with screwed or spigot and faucet ends	7	6	5	8
Tubes, all other kinds	11	3	8	5
Tube fittings	11	3	8	5
Structures, complete or incomplete, whether or not assembled, and parts thereof ...	8	9	6	7
Reservoirs, tanks and similar containers ...	11	3	8	5
Empty containers	11	3	8	5
Wire rope	11	3	8	5
Fencing	8	9	6	7
Expanded metal	8	9	6	7
Anchors and chains	11	3	8	5
Nails	11	3	8	5
Bolts, nuts, pins, rivets, spikes and washers	7	6	5	8
Castings, plain	7	6	5	8
Castings, dressed	11	3	8	5
Other articles of iron and steel	11	3	8	5
Copper and articles thereof	11	3	8	5
Nickel and articles thereof	11	3	8	5
Aluminium and articles thereof	11	3	8	5
Lead and articles thereof—				
Lead, pig and scrap	8	9	6	7
Lead manufactures	11	3	8	5
Zinc and articles thereof	11	3	8	5
Tin and articles thereof	11	3	8	5
Other base metals employed in metallurgy and articles thereof	11	3	8	5

*Clyde Navigation
Order Confirmation Act 1964*

CH. xlii

21

Classification	Rate per ton		Foreign Coastwise	
	s.	d.	s.	d.
Tools, implements, cutlery, spoons and forks, of base metal; parts thereof	11	3	8	5
Miscellaneous articles of base metal	11	3	8	5
Boilers, machinery and mechanical appliances; parts thereof—				
Machinery and machines, loose or in packages	11	3	8	5
Ingot moulds	7	6	5	8
Electrical machinery and equipment; parts thereof	11	3	8	5
Railway and tramway locomotives, rolling stock and parts thereof; railway and tramway track fixtures and fittings; traffic signalling equipment of all kinds (not electrically powered) ...	11	3	8	5
Vehicles, other than railway or tramway rolling stock, and parts thereof	11	3	8	5
Aircraft and parts thereof; parachutes; catapults and similar aircraft launching gear; ground flying trainers	11	3	8	5
Ships, boats and floating structures	11	3	8	5
Optical, photographic, cinematographic, measuring, checking, precision and surgical instruments and apparatus; parts thereof ...	11	3	8	5
Clocks and watches and parts thereof	11	3	8	5
Musical instruments, sound records and reproducers, parts and accessories of such articles	15	0	11	3
Arms and ammunition; parts thereof	11	3	8	5
Furniture and parts thereof, bedding, mattresses, mattress supports, cushions and similar stuffed furnishings	11	3	8	5
Brooms, brushes, feather dusters, powder-puffs and sieves	11	3	8	5
Toys, games and sports requisites; parts thereof	11	3	8	5
Works of art, collectors' pieces and antiques each	11	3	8	5
All other goods not elsewhere specified	11	3	8	5

SCH. 2
—cont.

SCH. 2
—cont.

CONDITIONS

1. Coastwise rates will apply to goods, animals and vehicles imported from or exported to any place within the United Kingdom, Isle of Man, Channel Islands or Republic of Ireland. Goods, animals and vehicles imported from or exported to any other place will be liable for foreign rates.

2. Rates on goods, animals and vehicles loaded or discharged at Paisley Harbour will be given a reduction of $66\frac{2}{3}$ per cent.

3. Rates on cargoes consisting exclusively of petroleum (oil or spirit) in bulk loaded or discharged at the Old Kilpatrick and Dunglass Oil Jetties will be given a reduction of $83\frac{1}{3}$ per cent.

4. Goods, animals and vehicles chargeable at full schedule rates, imported and subsequently exported ex quay or after being in store for a period not exceeding six months without change in nature, form or package, provided the ownership remains unchanged throughout, will be liable for rates either inwards or outwards whichever may be the higher.

5. Fuel oil on which rates have been charged at import and which is subsequently transferred to vessels within the port as bunker oil will also be chargeable at the appropriate export rate.

6. Where any goods, animals and vehicles are not listed above, the rates chargeable will be as for the goods, animals and vehicles listed which most nearly resemble them in nature, packing and quality, provided that where the Trustees consider that no such comparison is feasible, the rates will be as for "All other goods not elsewhere specified".

7. Rates chargeable at a rate per ton will be levied upon the gross weight of the goods and any packing and/or packaging in which such goods are contained at 2,240 lbs. to the ton.

SCHEDULE 3

Section 8.

ENACTMENTS WHICH DO NOT APPLY TO HOVER VEHICLES, HYDROFOIL
VESSELS OR SEAPLANES

Act (1)	Section (2)	Marginal Note (3)
The Act of 1887 ...	8	Regulations for collection of Rates.
The Act of 1929 ...	7	Rates on vessels.
	26	Rates for floating docks seaplanes &c.

SCHEDULE 4

AMENDMENTS

• PART I

AMENDMENTS COMING INTO FORCE ON THE DATE WHEN THE ORDER IS CONFIRMED BY PARLIAMENT Section 24.

Act or Order	Section or Schedule	Marginal note	Amendment
(1)	(2)	(3)	(4)
The Act of 1858..	68	Annuity to be paid ..	The words " not exceeding Four Pounds per Centum per Annum " shall be omitted.
The Order of 1908	9	Fund to be lent to Trustees	(i) In subsection (1)— (a) for the word " shall " where it first occurs the words " or any part thereof may " shall be substituted; (b) after the words " the Trustees and " the words " any moneys so lent " shall be inserted. (ii) In subsection (2) for the words " capital of the pension fund " the words " moneys so lent " shall be substituted.
The Act of 1929..	5	Incorporation of general Acts	The words " The expression ' vessel ' in section 28 of the Harbours Docks and Piers Clauses Act 1847, shall include any seaplane hydroplane airship or other aircraft belonging to or employed in the service of His Majesty " shall be omitted. 1847 c. 27.
	6	Interpretation ..	After the definition of " Rates " the following definition shall be inserted:— " ' port ' means, for the purpose of charging rates, the River Clyde between Albert Bridge, Glasgow and a straight line drawn across the River Clyde from

*Clyde Navigation
Order Confirmation Act 1964*

SCH. 4
—cont.

Act or Order (1)	Section or Schedule (2)	Marginal note (3)	Amendment (4)
The Act of 1929 (continued)			the eastern end of the castle of Newark on the south bank to the mouth of Cardross Burn on the north bank;”.
	7	Rates on vessels ..	(i) After the words “ this Act ” where they first occur the words “ and to the conditions contained in the First Schedule to this Act ” shall be inserted. (ii) For the words “ or departing from the river or harbour or otherwise passing up or down the river or any part thereof ” the words “ the Port ” shall be substituted.
	8	Rates on goods ..	(i) After the words “ this Act ” where they first occur the words “ and to the conditions contained in the Second Schedule to this Act ” shall be inserted. (ii) The words “ conveyed upon or ” shall be omitted. (iii) For the words “ in the river or at the harbour or otherwise passing up or down the river or any part thereof or into or out of the harbour including timber floated ” the words “ at the Port or otherwise coming within the limits thereof ” shall be substituted.
	10	Definition of Harbour	In subsection (1) the words “ (including the rating purposes of the Trustees) ” shall be omitted. In subsection (2) the words “ (including the power to levy and recover rates) ” shall be omitted.

*Clyde Navigation
Order Confirmation Act 1964*

CH. xlii

25

SCH. 4
—cont.

Act or Order (1)	Section or Schedule (2)	Marginal note (3)	Amendment (4)
The Act of 1929 (continued)	14	Exemption from rates	In paragraph (b) for the words "coming into the river or harbour from any place beyond the western limit of the river and sailing again beyond that limit" the words "entering the port and sailing again beyond the limits thereof" shall be substituted.
The Order of 1955	7	Lump sum fund to be lent to Trustees	(i) In subsection (1)— (a) for the word "shall" where it first occurs the words "or any part thereof may" shall be substituted; (b) after the words "the Trustees and" the words "any moneys so lent" shall be inserted. (ii) In subsection (2) for the words "capital of the lump sum fund" the words "moneys so lent" shall be substituted.
The Order of 1957	3	Incorporation of general Acts	In paragraph (b) of subsection (1) the proviso shall be omitted.
The Order of 1960	2	Incorporation of Harbours Docks and Piers Clauses Act 1847	In subsection (1) paragraph (a) of the proviso and "(b)" shall be omitted.
The Order of 1963	2	Incorporation of general Acts	In subsection (1) subparagraph (i) of the proviso to paragraph (b) and "(ii)" shall be omitted.
The Order of 1963	24	Application of money borrowed and of rates	In subsection (2) the words "and this Order" shall be omitted.

*Clyde Navigation
Order Confirmation Act 1964*

SCH. 4
—cont.

PART II

AMENDMENTS COMING INTO FORCE ON 1ST JANUARY, 1965

Act or Order	Section or Schedule	Marginal note	Amendment
(1)	(2)	(3)	(4)
The Order of 1908	3	Interpretation ..	In the definition of "Financial year" for the words "thirtieth day of June" the words "thirty-first day of December" shall be substituted.
	Schedule	Superannuation Fund Rules	In paragraph 1 in the definition of "Financial year" for the words "thirtieth day of June" the words "thirty-first day of December" shall be substituted.
The Order of 1960	11	Power to borrow for current expenses	In paragraph (b) of the proviso for the words "thirtieth day of June" the words "thirty-first day of December" shall be substituted.

SCHEDULE 5

Section 25.

REPEALS

Act or Order	Section or Schedule	Marginal note	Extent of repeal
(1)	(2)	(3)	(4)
The Act of 1858..	71	As to Appointment of Auditor	The whole section.
	72	Accounts to be audited ..	The whole section.
	103	Rates on Vessels proceeding to or from Graving Docks	The whole section.
	105	Saving Exemption of Duties on lowest Stage of the River on Articles passing into and out of the Forth and Clyde Canal	The whole section.

Act or Order	Section or Schedule	Marginal note	Extent of repeal
(1)	(2)	(3)	(4)
The Act of 1858.. (continued)	106	Provision as to Exemption of Goods passing to or from the Forth and Clyde Canal	The whole section.
	107	Rates on Vessels crossing the Clyde from the Forth and Cart Junction Canal to the River Cart	The whole section.
	108	Exemptions from Rates leviable at Glasgow and Dumbarton reserved for Lives of existing Burgesses	The whole section.
The Act of 1929..	9	Rates on goods not enumerated	The whole section.
	12	River divided into stages and rates on stages	The whole section.
	14	Exemption from rates ...	Paragraph (c).
	16	Transshipment rates	The whole section.
	17	Saving for Forth and Clyde Canal	The whole section.
	20	Definition of weight ..	The whole section.
	24	Rates on vessels in respect of deck cargoes	The whole section.
	25	Registered tonnage of tugs	The whole section.
	30	Rates to be charged equally	The whole section.
	51	Auditor's remuneration	The whole section.
	53	Annual accounts to be sent to Ministry of Transport	The whole section.
The Order of 1950	22	Amendment of section 25 of the Act of 1929	The whole section.
The Order of 1957	28	Further amendment of section 25 of the Act of 1929	The whole section.
The Order of 1957	40	Amendment of section LXXII of Act of 1858	The whole section.
The Order of 1960	4	Amendment of the Act of 1929	Paragraph (h).
	5	Further amendment of section 25 of the Act of 1929	The whole section.
The Order of 1963	19	Rates on vessels using new works	The whole section.
	20	Rates on goods using new works	The whole section.
	21	Rates to be collected at places appointed by Trustees	The whole section.
	Schedule		The whole Schedule.

*Clyde Navigation
Order Confirmation Act 1964*

SCHEDULE 6

Section 26.

AMENDMENT OF THE SUPERANNUATION FUND RULES

Rule (1)	Amendment (2)
7	For rule 7 the following rule shall be substituted:— “ 7.—(1) The benefits payable under Rules 5 and 6 to a member resigning or retiring shall be as follows:— (a) For each completed month of Pensionable Service an annual payment during the remainder of his life (in these rules referred to as ‘ superannuation allowance ’) equal to 1/960th of the average amount of his yearly salary or wage during the three years ending on the day on which he ceases to hold his office or employment: Provided that the amount of the superannuation allowance payable under this paragraph shall not exceed one-half of the said average amount; and (b) A single payment (in these rules referred to as ‘ lump sum payment ’) equal to 1/320th of such average amount for each month of service: Provided that the amount of the lump sum payment shall not exceed one and a half times the said average amount. (2) Notwithstanding the provisions of paragraph (1) of this rule every member in the employment of the Trustees prior to the seventh day of May nineteen hundred and fifty-five shall have the option exercisable by notice in writing to the Trustees at any time before his resignation or retirement of receiving the following alternative benefit in lieu of the payments under paragraph (1) of this rule:— For each completed month of Pensionable Service an annual payment during the remainder of his life (in these rules referred to as a ‘ superannuation allowance ’) equal to 1/720th of the average amount of his yearly salary or wage during the three years ending on the day on which he ceases to hold his office or employment: Provided that the amount of the superannuation allowance payable under this paragraph shall not exceed two-thirds of the said average amount. (3) For the purposes of this rule the yearly wage of a member who is not paid an upstanding wage shall be reckoned as fifty-two times the weekly wage at ordinary time paid to the class in which he is employed.”
7A	(i) For the word “ fifty-five ” the word “ fifty-seven ” shall be substituted. (ii) For the words “ five years ” in both places where they occur the words “ three years ” shall be substituted.

Rule (1)	Amendment (2)
13A	For the words “ as in their discretion they shall think fit to his widow, next of kin, executor or other legatee ” the words “ as they, in their discretion shall think fit, to his widow or to a person who, in the opinion of the Trustees, was dependent on the member at the time of his death ” shall be substituted.

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